

S.Murugan vs State Rep. By The on 20 December, 2016

Author: P.Kalaiyarasan

Bench: P.Kalaiyarasan

BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT

DATED: 20.12.2016

CORAM

THE HONOURABLE MR.JUSTICE P.KALAIYARASAN

Criminal Original Petition (MD) No.2585 of 2010
and
M.P.(MD) No.1 of 2010

1.S.Murugan
2.Kaliammal
3.Jayakodi
4.Santhanam
Petitioners

versus

1.State rep. by the
Sub Inspector of Police,
All Women Police Station,
Paramakudi,
Ramanathapuram District
Crime No.16 of 2009

2.K.Pothumponnu

... Responde

Prayer: Criminal original is filed under Section 482 of Cr.P.C., to call for the records and quash the charge sheet in C.C.No.9 of 2009 in Crime No.16 of 2009 dated on 12.12.2009 pending before the Judicial Magistrate Court, Paramakudi.

For Petitioners : Mr.T.Lajapathi Roy

%For Respondent : Mr.K.Anbarasan, G.A. (Crl. Side)

for R1

No Appearance for R2

: ORDER

This criminal original petition has been filed under Section 482 of Cr.P.C., praying to call for the records in C.C.No.9 of 2009, on the file of the Judicial Magistrate Court, Paramakudi and to quash the same.

2.It is averred in the petition that the petitioners are arrayed as accused and they have been charge sheeted for the offence under Sections 498(A) and 506(i) of I.P.C. The defacto complainant is the first petitioner's maternal uncle's daughter. She preferred a complaint alleging that she was married to the first petitioner on 11.09.2002 and the petitioners treated her cruelly and threatened her with dire consequences. The alleged marriage itself is false. The first petitioner attained only 14 years on the alleged date of solemnization of marriage with the defacto complainant and therefore, there was no possibility of marriage between them. The first petitioner married one Anushuya on 28.10.2009 and the said marriage was also registered. Only on 19.11.2009, the defacto complainant gave a complaint alleging that she married the first petitioner and had been living for seven years. Therefore, the proceeding in C.C.No.9 of 2009 against the petitioners is liable to be quashed.

3.The learned counsel for the petitioners contends that the date of birth of the petitioner is 27.04.1988 and therefore, on the alleged date of marriage, he would have been only 14 years. Therefore, the alleged marriage itself is not possible and false. For that reason alone, the case against the petitioner is to be quashed.

4.The learned Government Advocate (criminal side), per contra, contends that as per statement of witnesses recorded under Section 161(3) of C.P.C., the marriage was solemnized between the petitioner and the defacto complainant on 11.09.2002 and after the marriage, the couple was not blessed with issues and only on the basis of the materials collected as to the cruelty and threat, charge sheet has been laid.

5.On the side of the petitioners, the secondary school leaving certificate of the first petitioner has been filed to show that his date of birth is 27.04.1988. According to the defacto complainant, the marriage was solemnized on 11.09.2002. Therefore, at the time of marriage, the first petitioner might be only 14 years. No doubt, 14 years is not marriageable age as per Section 5 of Hindu Marriage Act, 1955. The petitioners cannot take advantage of that, and claim that marriage itself was not solemnized between the first petitioner and the defacto complainant. The above contention may be a defence in the case and the petitioners have to put forth such a defence only before the trial Court during the trial.

6.This Court also perused the documents filed along with the criminal original petition. Charge sheet has been laid on the basis of the statements recorded from the witnesses. There are sufficient materials to make out the offence as against the petitioners and the Judicial Magistrate has also, after perusing the charge sheet and the material filed along with the charge sheet, taken cognizance of the offence as against the petitioners. This Court does not see any abuse of process of Court to invoke the inherent jurisdiction under Section 482 of C.P.C.

7. For the aforesaid reasons, this criminal original petition is liable to be dismissed and the same is accordingly dismissed. Consequently, connected miscellaneous petition is also dismissed.

To

1. The Judicial Magistrate Court, Paramakudi.
2. The Additional Public Prosecutor, Madurai Bench of Madras High Court, Madurai..